

My personal response to the TTIP consultation

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This morning I took time to write to the TTIP consultation to oppose its implementation, and especially the ISDS clause. You should too. Responses must be personal to count but this is something that it is really worth fighting against.

Dear Sir/Madam,

I write with grave concern over the proposed implementation of the TTIP and urge you to halt its implementation. I find it extremely worrying, in particular, that the Investor-to-State Dispute Settlement would allow corporations to sue governments as though they had rights to profits above and beyond the rights of citizens to earn a living and to have self-determination over their governance. Powerful, wealthy corporations must not be allowed to dictate the law instead of citizens.

This is not just mere speculation. The barrage of past litigation on the topic (Vatenfall vs Germany, 2009; Vatenfall vs Germany, 2012; Occidental Petroleum vs Ecuador, 2009; and Phillip Morris vs Australia, 2011) indicates the very real danger that governments who seek to democratically protect their citizens will find themselves under legal threat from corporations who believe they are entitled to a status above the law. Implementing TTIP would open a Pandora's Box whose danger cannot be overstated.

Furthermore, as the situation in India, South Africa, Australia, Brazil and Norway shows, it can be virtually impossible to extricate oneself from clauses such as these once they are in place. This seems to be a one-way movement towards private influence taking precedence over public democracy.

The implementation of the TTIP is opposed by a huge number of various parties from all areas of the political spectrum (including Friends of the Earth, Fuel Poverty Action, Keep our NHS public, Open Rights Group, OurNHS, Public and Commercial Services Union, SumOfUs, UK Uncut, Unison, Unite, War on Want, World Development Movement). The TTIP and particularly the ISDS clause represents the pinnacle of anti-democratic thought and to implement it against such fervent opposition would be its birth astride a grave, as the playwright Samuel Beckett might have put it.

I urge you to reconsider this "partnership", and especially the ISDS, which I fear would be devastating for the rights of people worldwide in contemporary democracies.

Yours sincerely,

Dr. Martin Paul Eve